Meeting Summary — March 27, 2026

DrOk Platform — Discovery Alignment Call

Date: 2026-03-27
Duration: ~35 minutes
Attendees: Mark McArthey (Learned Geek LLC), Dr. Martin Nunez, Carlos Rojas Klauer (Legal Advisor — Innovation & Technology), Karen McArthey (Translation Support)
Format: Google Meet

1. Decisions Made

#	Decision	Owner	Notes
D001	Martin (or his clinical entity) is the **data controller**; Learned Geek is the **data processor**	All	Carlos confirmed per Ley 29733
D002	A **Data Processing Agreement (DPA)** is required between Martin and Learned Geek	Mark + Carlos	Must define purposes, security, sub-processors, data return/destruction
D003	ANPDP registration is Martin's obligation as data controller	Martin	Learned Geek declared as processor; Anthropic/Twilio as sub-processors
D004	**One parent/guardian** consent is sufficient in practice for minor's data	Carlos	Both parents retain authority to request changes
D005	Medical records **cannot be deleted** — only blocked; raw data must be preserved	All	Peruvian law; system must maintain full traceability
D006	Data retention: **5 years electronic**, 20 years physical (electronic applies to us)	Martin	Per NTS N° 139-MINSA and Ley General de Salud

#	Decision	Owner	Notes
D007	Cross-border data transfer requires **traceability** — audit trail of data flows	Martin + Carlos	See "What Changed" below
D008	AI provides **advice only**; physician bears all clinical responsibility	All	VoBo validates all AI output
D009	**DIGEMID classification is not an MVP blocker**, but voluntary registration has long-term strategic value	All	Carlos prefers to pursue registration proactively

2. What Changed

Updates to previous positions based on this meeting's discussion.

Previous Understanding	Updated Understanding	Source
SCCs required for Peru→US data transfer (written analysis, March 23)	Meeting position: only traceability required. **These positions need formal reconciliation.**	Carlos + Martin in meeting
Both parents required for cross-border sensitive data (written analysis)	One parent sufficient in practice; both retain authority to request changes	Carlos in meeting
DIGEMID: gray area, wait and see	Carlos **prefers proactive registration** and asked Martin about a clinic contact to confirm scope. ANPDP is fast; DIGEMID is slower — plan accordingly.	Carlos in meeting
Telemedicine law (Ley 30421) not discussed	Carlos addressed this: there IS a telemedicine law with limitations on automated notifications, but he doesn't believe we fall under medical device classification. Formal opinion still needed.	Carlos in meeting
Platform is not a clinical record system (Apple Watch analogy)	Martin also acknowledged an obligation to "register as agents who control, register, and store clinical	Martin in meeting

Previous Understanding	Updated Understanding	Source
	history" with the Ministry of Health. Position is more nuanced than originally captured.	
MVP timeline unknown	**July 2026** proposed by Carlos — with user feedback before market launch	Carlos in meeting

3. Summary of Discussion

ANPDP Registration & Data Roles

Carlos confirmed the data controller/processor split. Martin is the controller (determines purpose of data processing); Learned Geek is the processor (provides technology). A DPA is required. All sub-processors (Anthropic, Twilio) must be declared in the ANPDP registration. Carlos noted the ANPDP is a responsive authority that works efficiently.

Cross-Border Data Transfer

Martin and Carlos stated that Peru requires traceability of data flows but does not currently have specific blocking restrictions on Peru→US transfer. Mark noted that cloud infrastructure options exist in Latin America (Azure Brazil) if data residency becomes a concern. Mark confirmed he has already reviewed Anthropic and Twilio Acceptable Use Policies for healthcare use — no issues identified. **However:** this position is simpler than Martin's written analysis from March 23, which stated SCCs are required. This needs to be reconciled formally.

Consent for Minors

Carlos confirmed one parent is sufficient in practice. Express consent (consentimiento expreso) is required given sensitive health data. Both parents retain authority to request changes or restrictions. The consent mechanism should be digital, captured within the platform through a confirmation flow with identity verification.

Data Retention & Immutability

Medical records cannot be deleted under Peruvian law. The system must preserve raw data without modification. Martin emphasized traceability as the core requirement. Retention is 5 years for electronic

records. Martin's position is that the platform is not a formal clinical record system (HCE), but he also acknowledged a registration obligation with the Ministry of Health for managing clinical histories — a more nuanced position than the Apple Watch analogy alone suggests.

Medical Device Classification (DIGEMID)

This was the most nuanced discussion. Martin maintains the system provides advice, not diagnosis. Carlos acknowledged the gray area but said he **prefers to pursue registration proactively** — he asked Martin about a contact at a specific clinic to help determine scope. Carlos noted that DIGEMID is a slower authority than ANPDP, which has timeline implications. Carlos also addressed the telemedicine law (Ley 30421): there are limitations on automated system notifications, but he doesn't believe this constitutes a medical device. Not a blocker for MVP, but Carlos wants clarity.

DrOk Brand & Trademark

"DrOk" is not currently trademarked. Martin acknowledged this needs to be done. Franchise restrictions from Infanzia/Kezer-Lab still need to be reviewed.

Timeline & Scope

No hard external deadline. Carlos proposed **MVP by July 2026** with user testing and feedback before market launch. He specifically asked about UX/UI design, user trust in AI channels, and how long the technical build would take. Martin said he can provide 50-100 physicians for MVP testing. Martin referenced physicians adopting AI since COVID (especially diagnostic imaging) and existing platforms (PubMed, OpenEvidence with Cleveland Clinic / Mayo Clinic) as market validation.

AI Authenticity & Safety

Mark described his 6-month research on AI confabulation and the PubMed citation-based approach. Carlos independently raised AI authenticity as a critical concern — referencing real-world AI safety incidents. Carlos used the word "veracidad" (truthfulness/veracity) to describe the concept. Both Carlos and Martin want to see the authenticity boundary document. Mark committed to sharing it.

Team Dynamics

Carlos validated the three-way expertise split: Martin (medical), Mark (technical, data privacy), Carlos (legal). He said: "Me gusta que seas cuidadoso con la data porque este negocio necesita esa óptica." Martin reinforced the worldwide vision. Mark echoed: "This is a problem many are trying to solve, but no one has solved it yet. Why not us?"

4. Action Items

#	Owner	Action	Due Date	Status
A001	Mark	Send meeting summary via email	March 28	🔴
A002	Mark	Set up Google Drive shared folder with project documents	This weekend	🔴
A003	Mark	Share authenticity boundary document	This weekend	🔴
A004	Mark	Share technical references and AI research	This weekend	🔴
A005	Mark	Prepare updated proposal with scope and phases	Before next meeting	🔴
A006	Carlos	Create WhatsApp group chat	This week	🔴
A007	Carlos	Contact clinic re: DIGEMID scope determination	TBD	🔴
A008	Martin	Review and begin DrOk trademark registration	In progress	🟡
A009	Martin	Review and respond to open questions (franchise, budget, VoBo rate, US market, product docs)	Before next meeting	🔴
A010	All	Schedule follow-up meeting	Next week (est.)	🔴

5. Outstanding Questions

For Carlos (Legal)

#	Question	Priority	Status
Q-C001	**DIGEMID classification:** Formal opinion needed. Carlos prefers proactive registration; needs clinic contact to confirm scope.	High	🟡 Carlos pursuing

#	Question	Priority	Status
Q-C002	**Ley 30421 (Telemedicine):** Carlos acknowledged the law exists with limitations on automated notifications. Formal written position needed.	High	🟡 Partially addressed
Q-C003	**SCC vs. traceability:** Written analysis (March 23) says SCCs required; meeting says traceability only. Which is the formal position?	High	❓ Needs reconciliation
Q-C004	**RENHICE / Ley 30024:** Does the system constitute an HCE? Position is nuanced — needs clarification.	Medium	🟡 Partially addressed
Q-C005	**Indemnification clause:** Review clinical responsibility language for engagement letter.	Medium	🔴 Not started

For Martin (Clinical / Business)

#	Question	Priority	Status
Q-M001	**Franchise restrictions:** Infanzia/Kezer-Lab agreement — AI tool deployment restrictions?	High	🔴 Raised — no answer
Q-M002	**Budget range:** General budget range for the project.	High	🔴 Not discussed
Q-M003	**VoBo sampling rate:** % of routine cases for physician review.	Medium	🔴 Not discussed
Q-M004	**US market status:** Active interest? English support needed? Medical tourism angle discussed briefly.	Medium	🟡 Briefly mentioned
Q-M005	**Product documentation:** Product sheets, dosing tables, ingredients for chatbot knowledge base.	Medium	🔴 Not discussed
Q-M006	**DrOk trademark:** Begin registration.	Medium	🟡 Acknowledged
Q-M007	**DIGEMID clinic contact:** Carlos asked Martin for a contact at a specific clinic to confirm scope.	High	🔴 Pending Martin

6. Parking Lot

Items mentioned but not fully discussed. Tracked so they are not lost.

#	Topic	Raised By	Notes
P001	Ministry of Health registration as clinical history managers	Martin	Needs clarification — separate from ANPDP registration
P002	Data monetization to physicians and institutions	Martin	Long-term revenue model discussed in context of DIGEMID registration benefit
P003	Medical tourism use case	Martin	Patients with physicians in both Peru and US; cross-border records
P004	Shared Drive for ongoing collaboration	Carlos	Carlos suggested Drive; Mark to set up this weekend

7. Documents

Previously Shared

Document	Shared By	Notes
Pre-Discovery Action Items (EN + ES)	Mark	Carlos reviewed; basis for discussion
Martin's Legal Analysis (260323 Proyecto DrOk)	Martin	Referenced during cross-border and consent discussions

To Be Shared This Weekend

Document	Owner
AI authenticity boundary document	Mark
Technical specification	Mark

Document	Owner
Project tracker (shared)	Mark

8. Next Meeting

Tentative date: Week of March 30 – April 3
Proposed agenda:

1. Review action items from this meeting
2. Carlos: formal position on DIGEMID classification and Ley 30421
3. Carlos: reconcile SCC vs. traceability position for cross-border transfer
4. Martin: franchise restrictions, budget range, timeline confirmation
5. Mark: walk through authenticity boundary document
6. Mark: present scope and phases proposal
7. Discuss secure document sharing approach

Prepared by Mark McArthey, Learned Geek LLC